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MAINS GS2

Oct 2026

Structure, organisation and functioning of the Judiciary; Fundamental Rights

The five writs, on one page

THE 30-SECOND VERSION

A writ is a court order that enforces rights. The Supreme Court issues writs under Article 32, which is itself a Fundamental Right, and High Courts under Article 226, which is wider because it also covers legal rights. There are five writs, each with a narrow job.

Each writ in one row

WRIT	LITERALLY	WHAT IT DOES	NOT ISSUED AGAINST
Habeas corpus	To have the body	Produce a detained person and justify the detention	Lawful detention, contempt of court, detention outside the court's jurisdiction
Mandamus	We command	Orders a public official or body to do a public duty	Private persons, the President, Governors, purely discretionary duties
Prohibition	To forbid	Stops a lower court or tribunal before it exceeds jurisdiction	Administrative and legislative bodies, private persons
Certiorari	To be certified	Quashes an order already passed without jurisdiction or with error	Legislative bodies, private persons
Quo warranto	By what authority	Asks a holder of public office to show their legal right to it	Ministerial or private offices

Traps examiners set

✕ ~~Only the Supreme Court can issue writs.~~
✓ High Courts can too (Art 226), and Parliament may empower other courts (Art 32(3)).

✕ ~~Prohibition and certiorari do the same thing.~~
✓ Prohibition prevents, before an order. Certiorari cures, after an order.

✕ ~~Habeas corpus lies only against the State.~~
✓ It lies against private persons too, whoever holds someone unlawfully.

MEMORY HOOK

Have Mercy, Please Certify Quickly: Habeas, Mandamus, Prohibition, Certiorari, Quo warranto.

WHAT MOST NOTES MISS

Under Article 32 the Supreme Court cannot refuse to hear a rights violation, because the remedy is itself a Fundamental Right. A High Court's power under Article 226 is discretionary but wider in scope.

Use it in Mains

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Emergency and rights: ADM Jabalpur (1976) on habeas corpus, overruled in Puttaswamy (2017).

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Access to justice: PIL relaxed who may file a writ petition.

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Mandamus as a check on officials who sit on a clear public duty.

Test yourself

1. Which writ can be sought by any person, not only the aggrieved?
2. Which writ lies against private persons as well as the State?
3. Preventive or curative: which is certiorari?
4. Which clause lets Parliament empower other courts to issue writs?
5. Can mandamus be issued against the President?

Answers: 1. Quo warranto · 2. Habeas corpus · 3. Curative · 4. Article 32(3) · 5. No

Sources: Constitution of India, Articles 32, 226, 359 and 361; M. Laxmikanth, Indian Polity, chapter on Fundamental Rights (edition to confirm); Justice K.S. Puttaswamy (Retd.) v Union

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